

25.05.2021

Summary of the ANSPDCP Activity – First Four Months of 2021

In the context of celebrating three years since the application of the GDPR, on May 25, 2021, we present a summary of the most significant aspects of the activity of the National Supervisory Authority conducted during the first four months of 2021.

Thus, in the first four months of 2021, the National Supervisory Authority received 1,733 complaints, notifications, and reports regarding security incidents, based on which 288 investigations were opened. As a result of these investigations, 15 fines were imposed, totaling 110,545.7 lei. Additionally, 37 warnings were issued, and 30 corrective measures were ordered.

In the first four months of 2021, regarding the complaint resolution activity, the Supervisory Authority received 1,600 complaints, based on which 155 investigations were initiated. Concerning security incidents, during the period in question, data operators submitted, both under the GDPR and Law no. 506/2004, 84 notifications, and reports regarding possible non-compliance with the provisions of the GDPR amounted to 49.

As a result of the received reports and the security breaches notified by personal data operators, during the first four months of 2021, the Supervisory Authority initiated 133 ex officio investigations. At the same time, during the same period, our institution received 352 requests for issuing opinions regarding various aspects related to the interpretation and application of Regulation (EU) 679/2016 and other relevant regulations, by operators and their representatives, from the public and private sectors, as well as by other entities and individuals.

We also mention that 15 requests were received under Law no. 544/2001, mainly from the media.

Regarding the representation activity in court, in the first four months of 2021, the National Supervisory Authority managed a total of 98 cases pending in various procedural stages before the courts. During the same period, 5 new lawsuits were received, which concerned the contestation of the minutes of contestation/sanctioning of contraventions concluded by the National Supervisory Authority.

On the other hand, the National Supervisory Authority continued, in 2021, communication activities aimed at informing the general public about the specific rules for processing personal data, in the context of Regulation (EU) 2016/679, especially in the online environment in the context of the Covid-19 pandemic.

In January, to celebrate the European Data Protection Day, the National Supervisory Authority organized two online events aimed at correctly informing operators regarding the proper application of the personal data protection rules established by the General Data Protection Regulation.

Thus, on January 27, 2021, our institution organized an online conference dedicated to public authorities and institutions, titled "Findings and Recommendations for Operators in the Public Sector," where specific practical aspects of applying the principles of personal data processing will be presented and debated. This event was primarily attended by representative central public authorities and institutions.

Then, on January 28, 2021, it organized, online, the second conference dedicated to marking the European Data Protection Day, themed "Findings and Recommendations for Operators in the Private Sector," with the participation of the most important professional associations and unions, chambers of commerce, and media representatives. The celebration of this prestigious moment was also supported by the national television station TVR and the Bucharest Transport Company, which broadcasted the informative clip dedicated to the General Data Protection Regulation (public interest message), produced by our institution.

In order to achieve the objective of ensuring the information of operators, data subjects, and the general public, in February 2021, a press release was posted on the website of the National Supervisory Authority www.dataprotection.ro, containing a summary of the most significant aspects of the activity of the National Supervisory Authority.

Additionally, to increase the awareness of individuals regarding the exercise of their rights, in April 2021, information regarding the conditions for submitting/admissibility of complaints, according to Decision no. 133/2018 approving the Procedure for receiving and resolving complaints, was posted on the website of the National Supervisory Authority.

Throughout the first four months of 2021, our institution actively participated in several meetings related to data protection, organized by various public institutions or private entities, especially in an online format.

On the other hand, we emphasize that during this period, telephone advice was provided to several individuals and operators from the public and private sectors regarding the implementation of the provisions of Regulation (EU) 2016/679, clarifying and explaining a series of measures that Operators are obliged to implement them in order to comply with the provisions of this regulation. Prompt and efficient information for individuals, as well as for operators, has been provided during this period through the Authority's website, both through the 16 press releases posted in the "News" section and the information from the special section dedicated to the General Data Protection Regulation.

During the first four months of 2021, operators continued to declare data protection officers, with 713 officers appointed by operators in the public and private sectors registered with the National Supervisory Authority. At the same time, in the first four months of 2021, the National Supervisory Authority participated in the EDPB Plenaries, which were held online.

Additionally, in the context of cooperation with other supervisory authorities to ensure mutual assistance, approximately 37 requests regarding the application and compliance with Regulation (EU) 679/2016 were managed.

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